

The U.P. Ancient and Historical Monuments and Archaeological Sites and Remains Preservation Act, 1956

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State of Uttar Pradesh - Act

The U.P. Ancient and Historical Monuments and Archaeological Sites and Remains Preservation Act, 1956

UTTAR PRADESH

India

The U.P. Ancient and Historical Monuments and Archaeological Sites and Remains Preservation Act, 1956

Rule

THE-U-P-ANCIENT-AND-HISTORICAL-MONUMENTS-AND-ARCHAEOLOGICAL-SITES-AND-REMAINS-PRESERVATION-ACT-1956 of 1956

Published on 12 January 1957

Commenced on 12 January 1957

[This is the version of this document from 12 January 1957.]

[Note: The original publication document is not available and this content could not be verified.]

The U.P. Ancient and Historical Monuments and Archaeological Sites and Remains Preservation Act, 1956

U.P. Act No. VII of 1957

039.

[12th January, 1957]

An Act to provide for the preservation of ancient and historical monuments and archaeological sites and remains in Uttar Pradesh other than those declared by Parliament by law to be of national importance.

Whereas it is expedient to provide for the preservation and protection of ancient and historical monuments and

archaeological sites and remains in U.P. other than those declared to be of national importance by the Ancient and Historical Monuments and Archaeological Sites and Remains (Declaration of National Importance) Act, 1951, and for certain other matters concerned therewith;

For Statement of Objects and Reasons, see U.P. Gazette, Extraordinary, dated May, 7, 1956. It received the assent of the President on January 12, 1957 and published in the U.P. Gazette, Extraordinary, dated January 17, 1957.

It is hereby enacted in the Seventh Year of the Republic of India as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called the U.P. Ancient and Historical Monuments and Archaeological Sites and Remains Preservation Act, 1956.

(2)

It extends to the whole of Uttar Pradesh.

(3)

It shall come into force at once.

2.

Definition.

- In this Act unless there is anything repugnant in the subject or context, any reference to ancient or historical monument or archaeological site or remains, shall mean ancient or historical monument or archaeological site or remains other than those declared by the Ancient and Historical Monuments and Archaeological Sites and Remains (Declaration of National Importance) Act, 1951, to be of national importance.

3.

Re-enactment and application to Act VII of 1904 to ancient and historical monuments and archaeological sites and remains.

- The provisions of the Ancient Monuments Preservation Act, 1904, as set out in Schedule I with the modifications mentioned in Schedule II are hereby re-enacted and shall apply and be always deemed to have applied to ancient and historical monuments and archaeological sites and remains in U.P.

4.

Continuation of notifications and orders, etc., issued under Act VII of 1904.

- Any action taken or purported to be taken including any declaration, appointment, notification, order, instruction, direction, scheme, rule, regulation, form or certificate, made or issued or purported to be made or issued under the Ancient Monuments Preservation Act, 1904, shall, so far as it is not inconsistent with the provisions of the said Act as re-enacted and modified by this Act, continue in force and shall be deemed to have been taken, made or issued under the provisions so re-enacted, unless and until directed otherwise or superseded by anything done or any action taken under the provisions so re-enacted.

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